

CHAPTER 23.

An Act to amend the Lunacy Acts, 1890 to 1922, and such of the provisions of the Mental Deficiency Acts, 1913 to 1927, as relate to the constitution and organisation of the work of the Board of Control, the exercise of the powers of the Board and the protection of persons putting those Acts into operation. [10th July 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

VOLUNTARY PATIENTS.

1.—(1) Any person who is desirous of voluntarily submitting himself to treatment for mental illness, and who makes a written application for the purpose to the person in charge, may without a reception order be received as a voluntary patient in an institution within the meaning of this Act, or in any hospital, nursing home or place approved for the purposes of this section by the Board of Control, or into the charge as a single patient of a person so approved,* and any approval under this section may be granted subject to such conditions as the Board think proper and may be revoked at any time.

Power to
receive
voluntary
patients.

(2) Any person under the age of sixteen whose parent or guardian is desirous of submitting him to treatment for mental illness may, if the parent or guardian makes to the person in charge a written application for the purpose accompanied by a medical recommendation, be received as a voluntary patient under this section, but such a person shall not be so received on his own application.

(3) The medical recommendation referred to in the last subsection shall—

(a) be signed by a registered medical practitioner, who shall be either the usual medical attendant

of the person to whom the application relates, or a medical practitioner who has been approved for the purpose of making such a recommendation either by the Board of Control or by the local authority within whose area the said person then is; and

- (b) state the qualifications of the medical practitioner, the date or dates on which he examined the said person, and that the said person is likely to be benefited by being received as a voluntary patient for treatment for mental illness under this section.

(4) A medical recommendation shall cease to have effect for the purposes of this section on the expiration of fourteen days from the last date on which the person to whom the recommendation relates was examined by the medical practitioner for the purpose of making the recommendation.

(5) Any person received as a voluntary patient under this section may leave the institution, hospital, home or place upon giving to the person in charge seventy-two hours' notice in writing of his intention to do so, or if he is a person under the age of sixteen upon such notice being given by his parent or guardian.

(6) For the purposes of this section, the expression "guardian" in relation to a person under the age of sixteen includes any person having the charge of the person under sixteen.

Notice of reception, death and departure of voluntary patients and provisions as to discharge of patients.

2.—(1) Where a person is received as a voluntary patient under the foregoing section of this Act or under the provisions of any local Act, notice of his reception shall before the expiration of the second day after the day on which he was so received be sent to the Board of Control in the case of a patient in an institution which has a visiting committee, by the clerk of the institution, and in any other case by the person in charge.

(2) If a person received as aforesaid dies in or departs from the institution, hospital, home or place where he was residing, notice of the fact shall, before the expiration of the second day after the day of the death

or departure, be sent to the Board of Control in the case of a patient in an institution which has a visiting committee, by the clerk of the institution, and in any other case by the person in charge.

(3) If any person received as aforesaid becomes at any time incapable of expressing himself as willing or unwilling to continue to receive treatment, he shall not thereafter be retained as a voluntary patient for a longer period than twenty-eight days, and shall, if he has not been previously discharged, be discharged on the expiration of twenty-eight days from the date on which he became incapable of so expressing himself, unless in the meantime he has again become capable of so expressing himself, or steps have been taken to deal with him either under the principal Act as a person of unsound mind or under section five of this Act as a person who is likely to benefit by temporary treatment.

(4) If a person who is under the age of sixteen and who has been received as aforesaid ceases to have any parent or guardian, or if his parents or guardians are incapable of performing, or refuse or persistently neglect to perform, their duty as such, the person in charge shall send to the Board of Control a report as to the circumstances of the case and the condition of the patient, and the Board shall forthwith consider the report and give such directions with respect to the case as they think fit.

(5) If any person fails to give any notice required to be given by him under subsection (1) or subsection (2) of this section, he shall for each day or part of a day during which the default continues be liable to a penalty not exceeding five pounds.

3.—(1) Any commissioner may at any time visit a person received as a voluntary patient under section one of this Act or under the provisions of any local Act, and report to the Board of Control on the case. Visitation of
voluntary
patients.

(2) If the Board of Control are of opinion that the mental state of any such voluntary patient is such as to render him unfit to remain as a voluntary patient, they may order the person in charge either to discharge the patient, or to take steps to deal with him either under the principal Act as a person of unsound mind or

under section five of this Act as a person who is likely to benefit by temporary treatment.

Power to
lodge rela-
tives and
friends of
patients.

4. Any relative or friend of a person who is received as a patient under any of the provisions of the principal Act or this Act or any local Act may be received and lodged as a boarder in any registered hospital or licensed house as long as the patient is resident therein:

Provided that for the purposes of the provisions of the principal Act relating to the number of patients who may be received in such hospitals or houses any such relative or friend shall be reckoned as a patient unless he is lodged in a part of the hospital or house not permitted to be used for the accommodation of patients.

TEMPORARY TREATMENT WITHOUT CERTIFICATION.

Provision
for
temporary
treatment
without
certification
of certain
persons.

5.—(1) Subject to the provisions of this section, a person who is suffering from mental illness and is likely to benefit by temporary treatment but is for the time being incapable of expressing himself as willing or unwilling to receive such treatment may, on a written application duly made in accordance with the provisions of this section but without a reception order, be received as a temporary patient for the purpose of treatment—

- (i) into an institution maintained by a local authority; or
- (ii) into a registered hospital; or
- (iii) into any such other institution, hospital or nursing home as may be approved by the Board of Control for the reception of such temporary patients; or
- (iv) with the consent of the Board of Control, into charge as a single patient.

(2) An application under this section must be in the form set out in Part I of the First Schedule to this Act, must be made to the person in charge and must, if possible, be made by the husband or wife, or by a relative of the person to whom it relates, or, on

the request of the husband or wife or of a relative, by a duly authorised officer of the local authority within whose area the said person then is, and, if the application is not so made, it shall contain a statement of the reason why it is not so made, of the connection of the applicant with the person to whom it relates and of the circumstances in which he makes the application.

(3) The application shall be accompanied by a recommendation in the form set out in Part II of the First Schedule to this Act, signed by two registered medical practitioners, of whom one shall be a medical practitioner (not being the usual medical attendant of the person to whom the application relates) approved by the Board of Control for the purpose of making recommendations under this section and the other shall be, if practicable, the usual medical attendant of the person to whom the application relates :

Provided that in the case of a person who is to be received into a licensed house or a nursing home or into charge as a single patient the recommendation shall not be signed by the person in charge, or by any person in the employment of the person in charge, or by any person interested in the house or home, or by any person in the employment of any person so interested.

(4) Each of the medical practitioners by whom a recommendation under this section is to be made shall, before signing the recommendation, examine the person to whom the recommendation relates either separately or in conjunction with the other and shall specify in the recommendation the date on which he so examined the said person and the grounds on which he bases his recommendation.

(5) A recommendation shall be of no effect for the purposes of this section if there is a greater interval than five clear days between the dates on which the person to whom the recommendation relates was examined by the two medical practitioners respectively and any such recommendation shall cease to have effect on the expiration of fourteen days from the date on which the person to whom the recommendation relates was examined by the two medical practitioners, or if he was examined by those practitioners on two different

dates, on the expiration of fourteen days from the later of those dates.

(6) Where a person is received as a temporary patient under this section, notice of his reception together with a copy of the application on which he was received and of the recommendation accompanying the application shall, before the expiration of the second day after the day on which he was received, be sent, in the case of a patient received into an institution which has a visiting committee, by the clerk of the institution to the Board of Control and to the clerk of the visiting committee, and, in any other case, by the person in charge to the Board of Control and to the clerk to the visitors of licensed houses for the district in which the patient is. The Board of Control shall upon the signed request of any person who considers himself to be unjustly detained under such application or recommendation furnish to him or to his authorised representative free of cost a copy of such application or recommendation.

(7) If a person so received dies in or departs from the institution, hospital, home or place where he was residing, notice of the fact shall before the expiration of the second day after the day of the death or departure, be sent, in the case of a patient in an institution which has a visiting committee, by the clerk of the institution to the Board of Control and to the clerk of the visiting committee, and, in any other case, by the person in charge to the Board of Control and to the clerk to the visitors of licensed houses for the district in which the patient was immediately before the death or departure.

(8) If any person fails to comply with any of the provisions of the last two preceding subsections he shall, for each day or part of a day during which the default continues, be liable to a penalty not exceeding five pounds.

(9) Within one month of the reception of any person received as a temporary patient under this section he shall be visited by at least two members of the visiting committee of the institution, if he is in an institution which has a visiting committee, or if he is not in such an institution by two at least of the visitors of licensed houses appointed for the district in which he is, of which visitors one must be a registered medical practitioner :

Provided that in the area within the immediate jurisdiction of the Board of Control, the duty imposed by this section on the visitors of licensed houses shall be performed by the Board of Control.

(10) If the persons making the said visits are of opinion that it is proper that the patient should continue to be detained they shall sign a statement to that effect and shall leave it with the person in charge but if they are of opinion that it is not proper that he should continue to be detained, they shall, before the expiration of the second day after the day of the said visit, send to the Board of Control a report stating their said opinion, and the grounds on which it is based, together with such other observations as they think fit.

(11) Subject to the provisions of this section a person received as a temporary patient may be detained for a period not exceeding six months but shall not be detained as such for any longer period.

(12) If a person who has been received as a temporary patient becomes capable of expressing himself as willing or unwilling to continue to receive treatment, he shall not thereafter be detained for more than twenty-eight days unless in the meantime he has again become incapable of so expressing himself.

(13) Where it is anticipated that a person who is undergoing treatment as a temporary patient under this section will not recover within the period of six months, but his early recovery appears reasonably probable, that period may from time to time be extended for further periods of such length not exceeding three months as may be specified in directions given by the Board of Control upon the application of one of the persons mentioned in subsection (2) of this section, made in such form and accompanied by such evidence or recommendations as the Board may by rules made under section three hundred and thirty-eight of the principal Act prescribe, provided that such further periods shall in no case exceed six months in all.

(14) The Board of Control may at any time order—

- (i) that any person received as a temporary patient shall be discharged; or
- (ii) that steps shall be taken to deal with him under the principal Act as a person of unsound mind.

(15) Without prejudice to the provisions of the last two preceding subsections, the provisions of sections seventy-two to seventy-four, seventy-six to eighty and eighty-two and eighty-three of the principal Act (which relate to the discharge of persons of unsound mind detained under that Act) shall apply to any person received as a temporary patient under this section as they apply to persons detained under that Act, subject, however, to such modifications and adaptations as may be prescribed by rules made under section three hundred and thirty-eight of the principal Act.

(16) Section one hundred and sixteen of the principal Act (which relates to the extent of the administrative powers of the Judge in Lunacy) shall have effect as if there were added at the end of subsection (1) thereof the following new paragraph :

“(g) To every person received as a temporary patient under section five of the Mental Treatment Act, 1930.”

(17) Any approval granted by the Board of Control under this section may be granted subject to such conditions as the Board think proper and may be revoked at any time.

PROVISIONS AS TO LOCAL AUTHORITIES.

Powers and
duties of
local
authorities.

6.—(1) It shall be the duty of every local authority to investigate the needs of their area, and to take such steps as they consider necessary to provide and maintain suitable accommodation for the reception of temporary patients under the last foregoing section of this Act and a local authority shall have power, subject to the approval of the Board of Control, to contract for the reception and treatment of such patients in any registered hospital or any institution, hospital, or nursing home approved by the Board of Control under that section.

(2) A local authority shall have power to receive and lodge any person as a voluntary patient under section one of this Act and to maintain and treat him in any institution under their control on such terms and conditions as to payment or otherwise as may be agreed, or, subject to the approval of the Board of Control, to contract for the reception and treatment of such patients in any registered hospital or any hospital or nursing

home approved by the Board of Control under that section.

(3) A local authority shall have power—

- (a) to make arrangements, whether by the provision of institutions or otherwise, for treatment as out-patients, either gratuitously or on such terms as to payment as they think fit, of persons suffering from mental illness;
- (b) to make provision for the after-care of any persons who have undergone treatment for mental illness and to contribute to the funds of voluntary associations formed for that purpose;
- (c) to contribute to the funds of voluntary associations formed for the purpose of the prevention and treatment of mental illness;
- (d) subject to the approval of the Board of Control to undertake research in relation to mental illness and the treatment thereof, and to make contributions towards the expenses of any body of persons engaged in such research;
- (e) to make and carry into effect agreements with any other local authority for providing for co-operation in or joint exercise of any powers conferred on them by this subsection, and for the apportionment between the authorities of the expenses incurred under the agreements.

(4) The powers of local authorities and visiting committees with respect to the provision, equipment and maintenance of mental hospitals, including the power to acquire land and borrow money, shall extend to the provision, equipment and maintenance of institutions for the purposes of this Act and, subject to such modifications and adaptations as may be prescribed by rules made under section three hundred and thirty-eight of the principal Act, the provisions of sections two hundred and seventy-five to two hundred and seventy-eight of that Act (which relate to the making of general rules and regulations and the appointment and duties of certain officers) shall apply in relation to institutions maintained by a local authority as they apply in relation to mental hospitals.

(5) The Asylums Officers' Superannuation Act, 1909, shall have effect as if for references therein to mental

hospitals there were substituted references to institutions maintained by local authorities.

(6) The powers conferred by the principal Act on local authorities for the purchase of land by agreement for the purpose of providing mental hospital accommodation shall be deemed to have been conferred in substitution for and not in addition to any powers conferred on local authorities by any previous Act for the purchase of land by agreement for the said purpose.

Provisions
as to
visiting
committees.

7.—(1) Every local authority shall appoint annually a visiting committee consisting of not less than seven members and shall exercise the powers conferred on them by this Act and the principal Act, except the power of raising a rate or borrowing, by the visiting committee :

Provided that the visiting committee shall comply with such directions, if any, as may be given by the local authority as to which of the methods of providing accommodation authorised by the principal Act or this Act shall be adopted.

(2) The provisions of subsections (4) and (5) of section one hundred and sixty-nine and of sections one hundred and seventy-one to one hundred and seventy-six of the principal Act shall apply to visiting committees appointed under this section as they applied to visiting committees appointed under section one hundred and sixty-nine of that Act.

(3) The visiting committee so appointed shall be the visiting committee of each institution maintained by the local authority, except where under an agreement to unite a separate visiting committee is appointed for any institution to which the agreement relates :

Provided that the visiting committee may appoint sub-committees and may delegate to those sub-committees such powers and duties as the committee from time to time think fit, and if the committee is the visiting committee of more than one mental hospital shall appoint a sub-committee for each such hospital, and the provisions of subsections (4) and (5) of section one hundred and sixty-nine of the principal Act shall apply in relation to any sub-committee appointed for an institution as if they were herein re-enacted with the substitution for references to the visiting committee of references to the sub-committee.

(4) A local authority may appoint as members of a visiting committee persons who are not members of that authority, so however that the number of persons so appointed shall not exceed one-third of the total number of the committee or where the whole of the committee is not appointed by that authority, one-third of the members appointed by that authority.

(5) Nothing in this section shall affect the power of the Minister of Health under section sixty-six of the Mental Deficiency Act, 1913, to authorise a local authority to appoint a committee for the care of the mentally defective to be the visiting committee. 3 & 4 Geo. 5.
c. 28.

(6) Two members at least of every visiting committee appointed under this section shall be women, one member at least of every sub-committee appointed under this section for an institution shall be a woman, and where under an agreement to unite a separate visiting committee is appointed for any institution one at least of the members appointed after the commencement of this Act by each local authority which appoints three or more members of the committee shall be a woman.

(7) This section shall not apply to the county of London.

8.—(1) Where a local authority have provided two or more mental hospitals for their area, a resident medical superintendent shall be appointed to have immediate charge of each of those hospitals, and there may also be appointed a supervising medical officer (who may, but need not, be one of the said resident medical superintendents), to have general supervision over all of those hospitals. Power to
appoint
single medi-
cal officer to
supervise
two or more
mental
hospitals.

(2) Where such a supervising medical officer is appointed, the local authority shall, subject to the approval of the Board of Control, make rules defining his duties and the relations between him and the medical superintendents at the several hospitals.

9.—(1) Any expenses incurred under the principal Act or this Act by a local authority shall be defrayed— Expenses
of local
authorities.

(a) in the case of the council of a county which does not comprise the area or any part of the area of any other local authority, as expenses for general county purposes;

(b) in the case of the council of a county which comprises the area or some part of the area of another local authority, as expenses for special county purposes from contribution to which that area or part of an area is exempt;

(c) in the case of any other local authority, out of the general rate fund.

(2) This section shall not apply to the administrative county of London.

Application
to London.

5 & 6 Geo. 5
c. ciii.

10.—(1) The powers and duties conferred or imposed by this Act on local authorities shall, so far as relates to the county of London, be powers and duties of the London County Council, and section thirty-five of the London County Council (General Powers) Act, 1915, shall have effect as though the said powers had been transferred to the London County Council by that Act.

(2) Any expenses (other than expenses relating to the provision, equipment and maintenance of buildings) incurred under this Act by the London County Council or the Common Council of the city of London shall be defrayed as if they were expenses for general county purposes of the administrative county of London, and the London County Council shall repay to the Common Council of the city of London at the end of every half-year all expenses reasonably incurred by the Common Council as aforesaid.

(3) Any expenses relating to the provision, equipment and maintenance of buildings under this Act shall be defrayed in the case of the London County Council as expenses for special county purposes, and in the case of the Common Council out of the general rate.

(4) A certificate by the City Chamberlain that any expenses have been incurred under this Act by the Common Council shall be conclusive evidence that those expenses have been so incurred, and if any question arises whether any such expenses are or are not expenses relating to the provision, equipment and maintenance of buildings, or have or have not been reasonably incurred, the question shall be determined by the Board of Control, and the determination of the Board shall be final and conclusive.

PROVISIONS AS TO CENTRAL AUTHORITY.

11.—(1) The Board of Control shall consist of the chairman (who shall be a paid commissioner) and not more than four other commissioners, all of whom shall be paid commissioners.

Reorgani-
sation of
Board of
Control.

(2) The members of the Board of Control shall be styled "senior commissioners."

(3) Of the senior commissioners other than the chairman one at least shall be a legal commissioner, two shall be medical commissioners, and one at least shall be a woman.

(4) The senior commissioners shall be appointed by His Majesty on the recommendation, as respects the legal commissioners, of the Lord Chancellor and, as respects the other commissioners, of the Minister of Health, and shall hold office during His Majesty's pleasure.

(5) No person shall be appointed a legal senior commissioner unless either—

- (i) he is a practising barrister or solicitor of at least five years' standing; or
- (ii) he is a commissioner, other than a senior commissioner, and was, at the date when he was appointed such a commissioner, a practising barrister or solicitor of at least five years' standing;

and no person shall be appointed a medical senior commissioner unless he is a registered medical practitioner of at least five years' standing.

(6) The commissioners other than the chairman who are at the commencement of this Act members of the Board of Control shall as from that date cease to be members thereof :

Provided that—

- (i) nothing in this section shall affect the tenure of office, salaries, rights (other than the right to be members of the Board), privileges or titles of the commissioners so ceasing to be members of the Board;

- (ii) such of the said commissioners as are paid commissioners shall be eligible to be re-appointed to the Board, and if any such commissioner is so re-appointed, he shall hold office on the same tenure as that on which he held office before the commencement of this Act.

(7) After the commencement of this Act—

- (i) no further unpaid commissioners shall be appointed;
- (ii) the paid commissioners, other than senior commissioners, shall be appointed, subject to the approval of the Minister, by the Board of Control and there shall be included among them women as well as men and any commissioners so appointed shall be officers of the Board.

(8) The number of senior commissioners and commissioners other than senior commissioners, and their salaries and the salary of the chairman, shall be such as the Minister of Health with the consent of the Treasury may fix.

(9) The following provisions shall have effect in any case where a person in the service of a local authority in respect of whom contributions have been paid under the Asylums Officers' Superannuation Act, 1909, is appointed to be a commissioner:

9 Edw 7.
c. 48

(a) The Superannuation Acts, 1834 to 1919, shall apply to the said person subject to the following modifications—

- (i) if he has served in an established capacity in the permanent civil service of the State for less than ten years but the respective periods during which he has so served and during which contributions have been paid in respect of him under the Asylums Officers' Superannuation Act, 1909, amount in the aggregate to ten years or upwards, there may be granted to him under and subject to the provisions of the Superannuation Acts, 1834 to 1919, an annual superannuation allowance equal to one-eightieth of the annual salary and emoluments of his

office for every completed year during which he has served as aforesaid; and

(ii) for the purpose of determining whether an additional allowance under subsection (2) of section one of the Superannuation Act, 1909, may be granted to him or whether a gratuity may be granted to his legal personal representatives under section two of that Act, any period during which contributions were paid in respect of him under the Asylums Officers' Superannuation Act, 1909, shall be taken into account as if it were a period during which he had served as aforesaid; and

(b) on his retirement from the permanent civil service of the State in such circumstances that an annual superannuation or compensation allowance might be granted to him under the Superannuation Acts, 1834 to 1919, as modified by this subsection, he shall be entitled to receive during life a superannuation allowance under and subject to the provisions of the Asylums Officers' Superannuation Act, 1909, as if on being appointed a commissioner he had retired from the service of the local authority in circumstances entitling him to a superannuation allowance under that Act.

(10) The provisions of this section shall have effect notwithstanding anything in the Mental Deficiency Act, 1913.

12. Subject to the directions of the Minister of Health, the chairman of the Board of Control, in consultation with the members of the Board, shall be responsible for making arrangements as to the administrative business of the Board, the regulation of the procedure of the Board, and the allocation of duties amongst the staff. Administra-
tive pro-
visions.

13. Any visitation, inspection or act required or authorised by the Lunacy Acts, 1890 to 1922, or by the Mental Deficiency Acts, 1913 to 1927, or by this Act, to be carried out by the Board of Control or by a commissioner or any number of commissioners, may, at the discretion of the Board of Control, be carried out either Provision
as to the
exercise of
powers of
visitation
and in-
spection.

by one or more commissioners or by one or more of the inspectors of the Board, and for the purposes of or in connection with any such visitation or inspection an inspector of the Board shall have the like duties, and, subject to any limitation or restriction imposed by the Board, the like powers, as are for those purposes and in that connection imposed or conferred on commissioners by the said Acts.

Transfer of
certain
powers from
Minister of
Health to
Board of
Control.
54 & 55 Vict.
c. 65.

14.—(1) The powers and duties specified in the Second Schedule to this Act conferred or imposed by the principal Act and by the Lunacy Act, 1891, on a Secretary of State (which powers and duties are now by virtue of the Ministry of Health (Lunacy and Mental Deficiency, Transfer of Powers) Order, 1920, vested in the Minister of Health) shall be transferred to the Board of Control, and accordingly in the several enactments specified in the first column of the said Second Schedule, and also in subsection (2) of section two hundred and forty-eight and in subsection (7) of section two hundred and sixty-nine and in section two hundred and seventy-two of the principal Act, the words “the Board of Control” shall be substituted for the words “a Secretary of State” or “the Secretary of State” wherever they occur.

(2) The words “with the sanction of a Secretary of State” in section two hundred and twenty-six of the principal Act shall be repealed.

Power to
make rules.

15.—(1) The power of the Board of Control to make rules under subsection (1) of section three hundred and thirty-eight of the principal Act shall include power to make rules for any of the purposes specified in the Third Schedule to this Act.

(2) The following shall be substituted for subsection (6) of the said section three hundred and thirty-eight :

“(6) Rules made under this section shall be laid before both Houses of Parliament forthwith, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat after any such rules have been laid before it, praying that a rule may be annulled, it shall thenceforth be void, but without prejudice to the

validity of anything previously done thereunder or to the making of a new rule :

Provided that the foregoing provision, so far as it relates to the presentation of an address by either House of Parliament and the consequences thereof, shall not apply to any rules which modify or adapt any enactment, whether in this or any other Act, but such rules shall cease to have effect upon the expiration of a period of three months from the date on which they came into operation unless at some time before the expiration of that period they have been approved by a resolution passed by each House of Parliament.

In reckoning any such period of three months as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days."

(3) Subsection (2) of this section shall come into operation on the passing of this Act.

MISCELLANEOUS AND GENERAL.

16.—(1) The principal Act and section sixty-three of the Mental Deficiency Act, 1913, shall have effect and, subject as provided in this section, be deemed always to have had effect, as if the following section were substituted for section three hundred and thirty of the principal Act:—

Amendment
of s. 330 of
principal
Act.

"(1) Where a person has presented a petition for a reception order, or signed or carried out, or done any act with a view to signing or carrying out, an order purporting to be a reception order or any report, application, recommendation, or certificate purporting to be a report, application, recommendation, or certificate under this Act, or any Act amending this Act, or has done anything in pursuance of this Act, or any Act amending this Act, he shall not be liable to any civil or criminal proceedings whether on the ground of want of jurisdiction or on any other ground unless he has acted in bad faith or without reasonable care.

(2) No proceedings, civil or criminal, shall be brought against any person in any court in respect of any such matter as is mentioned in the last preceding subsection, without the leave of the High Court, and leave shall not be given unless the court is satisfied that there is substantial ground for the contention that the person, against whom it is sought to bring the proceedings, has acted in bad faith or without reasonable care.

(3) Notice of any application under the last preceding subsection shall be given to the person against whom it is sought to bring the proceedings, and that person shall be entitled to be heard against the application.

(4) Where on an application under this section leave is given to bring any proceedings, and the proceedings are commenced within four weeks after the date on which leave was so given, the proceedings shall for the purposes of the Public Authorities Protection Act, 1893, be deemed to have been commenced on the date on which notice of the application was given to the person against whom the proceedings are to be brought."

(2) This section shall not affect any civil or criminal proceedings pending at the passing of this Act.

(3) This section shall come into operation on the passing of this Act.

Amendment
of s. 11 of
principal
Act.

17. The provisions of section eleven of the principal Act (which relates to the making of urgency orders) shall apply to all persons who are alleged to be of unsound mind whether they are rate-aided persons or not, and accordingly the words "not a pauper" in subsection (1) of that section are hereby repealed:

Provided that—

- (i) an urgency order with respect to a rate-aided person shall be signed by a duly authorised officer of the local authority within whose area that person is; and
- (ii) the following provisions of the said section, that is to say, subsection (5) and subsection (6) from the words "or if" to the end of that subsection shall not apply in the case of rate-aided persons.

18.—(1) A person shall not be deemed to be in receipt of poor relief or be deprived of any right or privilege or be subjected to any disability by reason only that he or a member of his family is being maintained under the provisions of the principal Act or of this Act in any place as a rate-aided patient: Provision as to rate-aided patients.

Provided that nothing in this section shall affect—

- (a) the provisions of section twelve of the Widows', Orphans', and Old Age Contributory Pensions Act, 1929 (relating to the administration of any pensions to which that Act applies, receivable by rate-aided persons of unsound mind); or the provisions contained in the First Schedule to that Act with respect to rate-aided persons of unsound mind; or
- (b) any provisions of the Lunacy Acts, 1890 to 1922, or of the Poor Law Act, 1930, relating to the settlement or chargeability of a patient or the liability of a patient, or of the persons liable to maintain him, for the expenses of his maintenance or any power to recover those expenses against the estate of the patient; or 20 & 21
Geo. 5. c. 17.
- (c) any of the provisions of the Pensions Act, 1839, or any power of His Majesty or of any Government department to provide, or the validity or the construction of any Royal Warrant, Order in Council, or Order, in force at the commencement of this Act, which provides for the repayment from any pension of the expense of the maintenance of rate-aided persons.

(2) This section shall come into operation on the passing of this Act.

19.—(1) In any case in which a person who is or is alleged to be of unsound mind is liable under the principal Act to be removed to or detained in a workhouse, he may under the like conditions and subject to the like procedure be removed to or detained in any such hospital or part of a hospital provided by the council of a county under the Local Government Act, 1888, as amended by the Local Government Act, 1929, or by the council of a county borough under the Public Health Act, 1875, as the council may approve for the purposes of this section, and the provisions of the Lunacy Acts, 1890 to 1922, Amendment as to persons of unsound mind liable to be removed to workhouses.
51 & 52 Vict.
c. 41.
19 Geo. 5.
c. 17.
38 & 39 Vict.
c. 55.

relating to the visitation of workhouses and to the powers and duties of guardians and their officers in respect of persons so removed or detained shall apply to such hospital with the substitution of the medical officer in charge of the hospital for the master and the medical officer of the workhouse.

(2) This section shall come into operation on the passing of this Act.

Discontinu-
ance of
terms
"asylum"
"pauper"
and
"lunatic."

20.—(1) Asylums provided or to be provided under the Lunacy Acts, 1890 to 1922, by any local authority shall hereafter be called, and are in this Act referred to as, mental hospitals, and accordingly for references in any public or local Act or in any order, regulation or other document issued under any such Act to any such asylum there shall be substituted references to a mental hospital.

(2) The Lancashire Asylums Board and the West Riding of Yorkshire Asylums Board shall respectively hereafter be known as, and are in this Act referred to as, the Lancashire Mental Hospitals Board and the West Riding of Yorkshire Mental Hospitals Board, and for references in any document to either of the said Asylums Boards there shall be substituted references to the Boards as re-named by this subsection.

(3) Any provision in any local Act for the reception of voluntary boarders into any institution shall have effect as if for references therein to "voluntary boarders," there were substituted references to "voluntary patients," and any reference in this Act to persons received as voluntary patients, or as patients, under any local Act shall be construed as including a reference to persons received before the commencement of this Act as voluntary boarders under any such Act.

(4) The word "pauper" shall cease to be used in relation to any person of or alleged to be of unsound mind and accordingly for references in any enactment or in any order regulation or other document issued under any enactment relating to persons of unsound mind there shall be substituted for the word "pauper" the expression "rate-aided person" "rate-aided patient" or "rate-aided" as the context may require.

(5) The word "lunatic" (except in the following contexts, that is to say, in the phrase "criminal lunatic,"

and in relation to persons detained as lunatics outside England) shall cease to be used in relation to any person of or alleged to be of unsound mind and there shall be substituted for that word wherever it occurs (except in the above-mentioned contexts) in any enactment or in any order, regulation or other document issued under any enactment the expression "person of unsound mind" "person" "patient" "patient of unsound mind" or "of unsound mind" or such other expression as the context may require.

(6) The Minister of Health may by order modify the wording of any enactment so far as is necessary to bring it into conformity with the provisions of this section.

21.—(1) In this Act unless the context otherwise requires :— Interpreta-
tion and
adaptation.

The expression "institution" means a mental hospital and other premises maintained by a local authority for the purposes of this Act, a registered hospital or licensed house :

The expression "person in charge" in relation to a person received or about to be received under this or any local Act as a voluntary or temporary patient (not being a person received, or about to be received, as a single patient) means the medical superintendent or other person in charge of the institution, hospital, home, or place into which he is, or is about to be, so received, and in relation to a person so received, or about to be so received, as a single patient, means the person into whose charge he is, or is about to be, so received.

The expression "the principal Act" means the Lunacy Act, 1890, and any reference to the Lunacy Acts, 1890 to 1922, or to the Mental Deficiency Acts, 1913 to 1927, or any of them, shall be construed as a reference to those Acts as amended by any subsequent enactment, including this Act. 53 & 54 Vic
c. 5.

(2) For the purpose of enabling this Act to be carried into effect in the several areas for which the Lancashire Mental Hospitals Board, the West Riding of Yorkshire Mental Hospitals Board, and the Staffordshire Mental Hospitals Board, act, the Board of Control may

by rules made under subsection (1) of section three hundred and thirty-eight of the principal Act make such adaptation and modifications of the provisions of this Act as they may consider necessary.

Short title,
construc-
tion, repeal,
extent and
commence-
ment.

22.—(1) This Act may be cited as the Mental Treatment Act, 1930, and shall be construed as one with the principal Act; and the Lunacy Acts, 1890 to 1922, and this Act, may be cited together as the Lunacy and Mental Treatment Acts, 1890 to 1930.

(2) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not apply to Scotland or Northern Ireland.

(4) This Act, except as otherwise expressly provided, shall come into operation on the first day of January, nineteen hundred and thirty-one.

S C H E D U L E S.

Section 5.

FIRST SCHEDULE.

PART I.

FORM OF APPLICATION FOR RECEPTION OF A TEMPORARY PATIENT.

MENTAL TREATMENT ACT, 1930.

1. I, _____ hereby request you to receive
as a temporary patient into

2. I am related to the said _____ in the following
manner :—

or,

I am the duly authorised officer of _____ . The
said _____ is now within the area of that authority
and I make this application at the request of

who is related to the said manner :—

in the following

1ST SCH.
—cont.

or,

[illegible]

3. Annexed hereto is a recommendation for the temporary treatment of the said _____, signed by _____

Signed.....

Dated

To

PART II.

FORM OF RECOMMENDATION FOR TEMPORARY
TREATMENT.

MENTAL TREATMENT ACT, 1930.

Recommendation for the temporary treatment of
of

I, _____ of _____ hereby declare
that:—

1. I am a registered medical practitioner and have been approved for the purpose of making recommendations under section five of the above-mentioned Act by [the Board of Control] and I am not the usual medical attendant of the above-named.

2. I examined the said _____ on the
day of _____ 19 _____

*3. I have formed the conclusions stated below on the following grounds, viz. :—

I, _____ of _____ hereby declare
that :—

1. I am a registered medical practitioner and am [am not] the usual medical attendant of the above-named.

2. I examined the above-mentioned _____ on the
day of _____ 19____

P

1st SCH.
—*cont.*

*3. I have formed the conclusions stated below on the following grounds, viz. :—

And we, the said _____ and
further declare that :—

1. The said

- (i) is suffering from mental illness ;
- (ii) is likely to benefit by temporary treatment ;
- (iii) is for the time being incapable of expressing himself as willing or unwilling to receive such treatment.

2. It is expedient with a view to the said _____'s
recovery that he should be received into _____ for a
period not exceeding six months.

Signed.....

Medical Qualifications.....

Date

Signed.....

Medical Qualifications.....

Date

* A person in specifying the grounds on which his conclusions are based, must carefully distinguish between statements of fact which are based upon his own observations and statements of fact which are based upon communications made to him by others.

Section 14.

SECOND SCHEDULE.

POWERS AND DUTIES TRANSFERRED TO THE BOARD OF CONTROL.

Enactment conferring or
imposing power or duty.

Description of power or duty.

Lunacy Act 1890 :

Subsections (2) (5) and (6) of
section two hundred and
thirty-one.

To determine whether hospital
desiring registration should be
registered and to approve
regulations of committee of
that hospital.

Subsection (3) of section two
hundred and forty-two.

To approve agreement by local
authorities to unite for pur-
pose of providing mental
hospital accommodation.

Enactment conferring or imposing power or duty.	Description of power or duty.	2ND SCH. — cont.
Subsection (4) of section two hundred and forty-three.	To approve contracts for the reception of rate-aided per- sons of unsound mind with Councils of County Boroughs.	
Section two hundred and fifty.	To sanction variation of agree- ment by local authorities to unite.	
Subsections (2) and (4) of section two hundred and fifty-four.	To approve plans and contracts of visiting committee and to determine differences between local authorities with reference to any plan, estimate or contract.	
Subsections (1) and (4) of section two hundred and sixty-seven.	To consent to dissolution of agreement to unite, and to division of property held for purposes of the agreement among the several local authorities, and to the mak- ing of the payments men- tioned in the said subsection (4).	
Subsection (1) of section two hundred and sixty-eight.	To consent to cancellation of contract for purchase or ex- change of lands by visiting committee and to approve payment to procure a release from the contract.	
Subsections (4) and (5) of section two hundred and sixty-nine.	To approve contract or deter- mination of contract by visiting committee for recep- tion of persons of unsound mind in licensed house or mental hospital of another committee and to determine such contracts.	
Subsections (1) and (2) of section two hundred and seventy-five.	To approve general rules made by visiting committee for government of mental hos- pital and any alteration or variation thereof.	
Lunacy Act 1891, Section 12 -	To approve alteration of regula- tions of managing committee of hospital.	

Section 15.

THIRD SCHEDULE.

MATTERS WITH RESPECT TO WHICH RULES MAY
BE MADE BY THE BOARD OF CONTROL.

1. Prescribing the books and records to be kept in any institution, hospital, nursing-home, house or place where any voluntary or temporary patient is received under this or any local Act and prescribing in relation to such institutions, hospitals, homes, houses or places any of the other matters with respect to which rules may be made under subsection (1) of section three hundred and thirty-eight of the principal Act.

2. Applying to such patients, subject to such modifications and adaptations, if any, as appear to the Board to be necessary or convenient, the provisions of subsection (3) of section twenty-seven of the principal Act (which prescribes the mental hospitals into which rate-aided patients may be received) sections fifty-five and fifty-six (which relate respectively to absence on trial or for health and to the change of residence of single patients) sections fifty-eight, fifty-nine, sixty-one, sixty-four to sixty-seven, sixty-nine and seventy of that Act (which relate to the removal of patients), Part X of that Act (which relates to liability for expenses of maintenance), and sections three hundred and nineteen, three hundred and twenty-two and three hundred and twenty-four of that Act (which relate respectively to the giving of notice of deaths to the coroner, the ill-treatment of patients and the abuse of female patients), or for otherwise regulating in relation to such patients any matters for which provision is made by any of the enactments aforesaid.

3. Applying to any such hospital, home, house or place (not being a hospital, home, house or place for the visitation and inspection of which provision is made by the principal Act) any of the provisions of that Act relating to the visitation and inspection of institutions for persons of unsound mind or of houses where persons of unsound mind are detained as single patients, including provisions as to powers of entry and penalties.

4. Applying to temporary patients received under section five of this Act, subject to such modifications and adaptations, if any, as appear to the Board to be necessary or convenient, the following provisions of the principal Act, that is to say, section forty (which regulates the use of mechanical means of restraint), section forty-one (which relates to the letters of patients), section forty-two (which relates to the posting of notices), section forty-seven (which relates to the visits of friends), section forty-nine (which empowers the Board of Control

to order the examination of a patient by two medical practitioners), section fifty (which relates to inquiries as to property), section fifty-one (which relates to searches in the records of the Board of Control), and section eighty-five (which provides for the retaking of patients who have escaped).

3RD SCH.
—*cont.*

5. Modifying and adapting, in relation to institutions maintained by local authorities not being mental hospitals, the provisions of sections two hundred and seventy-five to two hundred and seventy-eight of the principal Act (which relate to the making of general rules and regulations and the appointment and duties of certain officers).

6. Modifying and adapting in relation to persons received as temporary patients under this Act, the provisions of sections seventy-two to seventy-four, seventy-six to eighty and eighty-two and eighty-three of the principal Act (which relate to the discharge of persons detained under that Act) so far as may, in the opinion of the Board of Control, be necessary for the purpose of their application to persons so received as temporary patients.

7. Prescribing the evidence required on application for extension of temporary treatment.

FOURTH SCHEDULE.

Section 22.

REPEALS.

Session and Chapter.	Short Title.	Extent of Repeal.
53 & 54 Vict. c. 5.	The Lunacy Act, 1890.	In section eleven, the words "not " a pauper." Sections one hundred and sixty- nine, except subsections (2) (4) and (5) thereof, and one hundred and seventy. In section two hundred and twenty-six the words "with " the sanction of a Secretary of " State." Section two hundred and twenty- nine (except in relation to per- sons who are at the commence- ment of this Act being lodged thereunder).

4TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
53 & 54 Vict. c. 5.	The Lunacy Act, 1890.	-In section two hundred and thirty-one, subsection (2) down to the words "opinion, and" and in subsection (3) the words "or a "Secretary of State deter- "mines." Section two hundred and thirty-nine. In section two hundred and seventy-two, the words "to "the Secretary of State and" the words "shall report there- "on to the Secretary of State "who" and the word "his." In the definition of "visiting "committee" in section three hundred and forty-one, the words "of an asylum." Section twenty.
54 & 55 Vict. c. 65. 3 & 4 Geo. 5. c. 28.	The Lunacy Act, 1891. Mental Deficiency Act, 1913.	In subsection (1) of section twenty-two, the words "not more than "fifteen commissioners of whom "not more than twelve shall be "paid," and the words from "and of," to the end of the subsection, subsections (2), (5), and (6) of the said section and, except in relation to persons who are at the commencement of this Act commissioners, sub- sections (7) and (8) of the said section. In the proviso to subsection (1) of section twenty-eight the words "with the addition of at "least two women." The Schedule.